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Tentative Ruling

Re: **Specialty Capital, LLC v. Lorona**
Superior Court Case No. 24CECG00735

Hearing Date: August 4, 2026 (Dept. 501)

Motion: By Plaintiff to Enforce Settlement

**If oral argument is timely requested, it will be entertained on
Tuesday, August 11, 2026, at 3:30 p.m. in Department 501.**

Tentative Ruling:

To grant and sign the proposed judgment.

Explanation:

"Code of Civil Procedure section 664.6 provides a summary procedure to enforce a settlement agreement by entering judgment pursuant to the terms of the settlement...." (*Hines v. Lukes* (2008) 167 Cal.App.4th 1174, 1182, internal citations omitted.) As with law and motion matters generally, the court may receive evidence in determining motions under section 664.6. (*Pajaro Valley Water Management Agency v. McGrath* (2005) 128 Cal.App.4th 1093, 1107; see also Cal. Rule of Court, rule 3.1306(a); *Weddington Productions, Inc. v. Flick* (1998) 60 Cal.App.4th 793, 810.)

Plaintiff's counsel's declaration attaches the subject fully executed settlement agreement which provides that the court retains enforcement jurisdiction pursuant to section 664.6 and sets forth the payment schedule. (See Friedman Decl., Exh. A.) Defendant failed to make all payments in accordance with the payment schedule and is in breach of the settlement agreement. As of the filing of the motion to enforce, there remained a balance due of \$39,904.58. The motion is unopposed, and thus plaintiff's evidence is uncontroverted. Therefore, the motion is granted. Including attorney fees and costs, the total judgment to be entered is \$40,964.58.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: KCK **on** 08/03/26 .
(Judge's initials) (Date)

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Tentative Ruling

Re: **Torrez v. Patel et al.**
Superior Court Case No. 25CECG04595

Hearing Date: August 4, 2026 (Dept. 501)

Motion: By Defendants to Compel Plaintiff's Response to Defendants' Prabhatbai Patel and Sushilaben Patel's Form Interrogatories, Special Interrogatories, and Request for Production of Documents to Plaintiff, Set One, and Request for Sanctions;

**If oral argument is timely requested, it will be entertained on
Tuesday, August 11, 2026, at 3:30 p.m. in Department 501.**

Tentative Ruling:

To grant defendants' motions to compel plaintiff's responses to Prabhatbai Patel and Sushilaben Patel's Form Interrogatories, Special Interrogatories, and Request for Production of Documents (Set One). Plaintiff is ordered to serve verified responses, without objections, and produce all responsive documents, within 30 days of the clerk's service of the minute order.

To impose monetary sanctions in favor of defendants and against plaintiff Pablo Meza. (Code Civ. Proc., §§ 2023.010, subd. (d), 2030.290, subd. (c), 2031.300, subd. (c).) Plaintiff is ordered to pay \$882 in sanctions to Pascuzzi, Pascuzzi & Stoker, A Professional Corporation, within 30 days of the clerk's service of the minute order.

Explanation:

Compel Responses

Defendants Prabhatbai Patel and Sushilaben Patel ("Defendants") move to compel initial responses from plaintiff Danny Torrez ("Plaintiff") for Defendants' Form Interrogatories, Special Interrogatories, and Request for Production of Documents, Set One (collectively "Set One").

Responses to interrogatories and requests for production are due within 30 days after service. (Code Civ. Proc., §§ 2030.260, subd. (a), 2031.250, subd. (a).) If the party fails to serve responses, that party waives all objections to the interrogatories or request for production. (Code Civ. Proc., §§ 2030.290, subd. (a), 2031.300, subd. (a).)

On January 8, 2026, Defendants served Set One on Plaintiff. (Martinez Decl., ¶ 3.) On February 23, 2026, Plaintiff served unverified responses on Defendants via email. (*Id.*, ¶ 5.) As of May 11, 2026, Plaintiff has not sent verified responses to Set One. (*Id.*, ¶ 12.) Unverified responses are tantamount to no responses at all. (*Appleton v. Superior Court*

Sanctions

Defendants are seeking sanctions in the amount of \$1,782 based on 5.5 hours of work by an attorney at \$300 an hour and \$132 in costs. The 5.5 hours of attorney time is based on 2.5 hours to prepare the motions to compel, two hours to prepare a reply to Plaintiff's Opposition and one hour to prepare and attend a hearing on the motion. Plaintiff did not file an opposition. Thus, Defendants have neither drafted nor filed a reply. Additionally, no hearing has occurred yet. Accordingly, Defendants request for sanctions is granted but reduced. Plaintiff is ordered to pay \$882 in reduced sanctions to Pascuzzi, Pascuzzi & Stoker, A Professional Corporation, within 30 days of the service of the minute order.

Tentative Ruling

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